IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF GEORGIA
ROME DIVISION

SERVECO NORTH AMERICA LLC,

Plaintiff,

v.

GUMERSINDO MARTINEZ, a/k/a GEORGE MARTINEZ, an individual,

Defendant.

Civil Action No. _____

JURY TRIAL DEMANDED

COMPLAINT FOR DECLARATORY JUDGMENT

Plaintiff ServeCo North America LLC ("ServeCo"), for its Complaint against Defendant Gumersindo Martinez, also known as George Martinez ("Martinez"), alleges as follows:

NATURE OF THE ACTION

1. This is a civil action for a declaratory judgment under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202, and the Patent Laws of the United States, 35 U.S.C. § 1 et seq., that ServeCo does not infringe and is not liable for infringement of any claim of United States Patent No. 12,618,781 B2 ("the '781 patent"), and that the claims of the '781 patent are invalid.

2. The device that Martinez accuses of infringement is a device that helps a user to measure the depth of depressions on the top surface of a mattress (the "Device").

"Device"). The Device was developed into a commercial product by ServeCo with Martinez's assistance and involvement. Martinez therefore developed the Device, at least in part, while he was an employee of ServeCo, using ServeCo's time, personnel, facilities, equipment, materials, and funds. Martinez encouraged and assisted ServeCo's use of the Device in ServeCo's business. ServeCo used the Device openly, notoriously, and continuously, without Martinez's objection, for almost 20 months. Only when Martinez was terminated for cause on August 21, 2026, did he raise his alleged concerns that the Device was an unauthorized use of a patent he had filed.

3. On information and belief, Martinez filed a provisional patent application related to the Device in May 2024. On information and belief, Martinez filed an application for a utility patent related to the Device in May 2025, while he was employed by ServeCo. Martinez kept ServeCo's Chief Executive Officer informed of the patent application process. At one time, when he was still a ServeCo employee, Martinez suggested that the number of the '781 patent be placed on the Devices that ServeCo was using in its business.

4. On or around August 21, 2026, counsel for Martinez sent a cease-and-desist letter to ServeCo, asserting that the '781 Patent barred ServeCo from making, selling, using, or otherwise commercializing the Device. This was the first time that Martinez alleged that ServeCo's use of the Device constituted patent infringement.

5. On information and belief, Martinez has told several of ServeCo's customers that ServeCo is infringing the '781 patent by using the Device.

6. ServeCo does not infringe the '781 patent at least because ServeCo holds an implied license to practice the claimed subject matter.

7. The '781 patent is invalid over the prior art.

THE PARTIES

8. Plaintiff ServeCo is a limited liability company organized and existing under the laws of the State of Georgia, with its principal place of business at 19 Smiley Ingram Road SE, Cartersville, Georgia 30121, within this District and Division.

9. Defendant Gumersindo Martinez, also known as George Martinez, is an individual residing in Centerton, Benton County, Arkansas.

10. Martinez is named as an inventor on the '781 patent. Martinez purports to be the owner of all right, title, and interest in the '781 patent. The '781 patent also identifies Daniel Esteban Viviani, as a co-inventor. ServeCo reserves the right to amend this Complaint to add Mr. Viviani or any other person or entity holding an ownership interest in the '781 patent as a party if discovery reveals that any such interests exist.

JURISDICTION AND VENUE

11. This Court has subject matter jurisdiction over this action under 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202, because this action arises under the Patent

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11. This Court has subject matter jurisdiction over this action under 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202, because this action arises under the Patent Laws of the United States and presents an actual controversy within this Court's jurisdiction.

12. An actual, substantial, and continuing justiciable controversy exists between ServeCo and Martinez concerning the infringement, validity, and enforceability of the '781 patent, and concerning ServeCo's right to continue using the Device, which controversy is of sufficient immediacy and reality to warrant declaratory relief.

13. This Court has personal jurisdiction over Martinez under the Georgia Long-Arm Statute, O.C.G.A. § 9-10-91, and consistent with due process.

14. Martinez was employed by ServeCo, a Georgia company, pursuant to an employment agreement governed by Georgia law from at least January 1, 2025 until ServeCo terminated his employment for cause on August 21, 2026. Martinez's employment agreement provides that his duties "shall be rendered at the office of Premier Frontline Consultants, LLC, in Bentonville, Arkansas, at the Company in Carterville, Georgia." During that employment Martinez transacted business in Georgia, worked in Georgia, and developed, built, and tested the Device, using ServeCo's Georgia facilities, personnel, and resources. Martinez routinely worked

with ServeCo's officers, including its Chief Executive Officer and Chief Technology Officer, regarding the Device.

15. Martinez has retained Georgia counsel to purposefully direct his patent enforcement activity against ServeCo in the state of Georgia. On August 21, 2026, Martinez's counsel, Sutton Law Group, LLC of Marietta, Georgia, sent ServeCo's counsel in Georgia an email and a letter demanding that ServeCo cease producing, using, and advertising ACT Vision and accusing ServeCo of infringing the '781 patent.

16. The August 21 letter also stated: "[W]e reserve the right to proceed in accordance with O.C.G.A. § 9-11-65 to seek an injunction against you. You are on notice that we intend to proceed under that subsection to obtain an injunction to prevent your continued unauthorized use." (emphasis in original). Although Martinez's specific reference to Georgia law was meritless,[1] the letter reflects his intent to enforce patent rights in Georgia.

17. On September 3, 2026, Martinez's Georgia counsel sent ServeCo a letter demanding that ServeCo preserve any evidence regarding Martinez's purported intellectual property.

18. Martinez has also communicated directly with ServeCo's customers about the '781 patent. Martinez's enforcement communications were directed to ServeCo's customer relationships, which ServeCo manages from its headquarters in Cartersville, Georgia. Martinez's communications with ServeCo's customers were intended to and did affect ServeCo's business in this District.

[1] "Federal courts have exclusive jurisdiction over cases 'arising under any Act of Congress relating to patents.' 28 U.S.C. § 1338(a)." *Gunn v. Minton*, 568 U.S. 251, 253 (2013).

18. Martinez has also communicated directly with ServeCo's customers about the '781 patent. Martinez's enforcement communications were directed to ServeCo's customer relationships, which ServeCo manages from its headquarters in Cartersville, Georgia. Martinez's communications with ServeCo's customers were intended to and did affect ServeCo's business in this District.

19. Martinez has additional contacts with Georgia. As President of Premier Furniture Consultant, LLC ("Premier"), an entity in which ServeCo holds a 50% membership interest, Martinez led a business whose operating agreement provides that "[a]ll Company administrative activities and subsequent public representation of business office will be at 19 Smiley Ingram Rd SE, Cartersville GA 30121." He signed, on Premier's behalf, an administrative services agreement with ServeCo that is governed by Georgia law and under which Martinez "consent[ed] to the jurisdiction of the state and federal courts located in the State of Georgia."

20. On information and belief, Martinez has additional contacts with Georgia, including contacts related to providing services to Macy's department stores in Georgia. Martinez's testing and commercialization, product development, marketing, and software development in connection with the Device took place in Georgia. Martinez maintained an office at the ServeCo facility in Georgia, where Martinez worked approximately five days each month in his capacity as President of ServeCo Repair. As President of ServeCo Repair, Martinez worked in Georgia on developing the Device, developing the ServeCo Repair service network, training and onboarding new service technicians, participating in general ServeCo company meetings, and visiting and presenting to sales agents and customers, among other activities.

21. Martinez's contacts with Georgia are such that the exercise of personal jurisdiction over him in this District comports with traditional notions of fair play and

on developing the Device, developing the ServeCo Repair service network, training and onboarding new service technicians, participating in general ServeCo company meetings, and visiting and presenting to sales agents and customers, among other activities.

21. Martinez's contacts with Georgia are such that the exercise of personal jurisdiction over him in this District comports with traditional notions of fair play and substantial justice, and Martinez should reasonably anticipate being haled into court in this District.

22. Venue is proper in this District under 28 U.S.C. § 1391(b)(2) because a substantial part of the events or omissions giving rise to these claims occurred in this District, including Martinez's employment with ServeCo, the development of the Device, ServeCo's use of the accused device, Martinez's accusations of infringement directed into this District, and the injury to ServeCo's business and customer relationships.

FACTUAL BACKGROUND

A. ServeCo and Its Business

23. ServeCo provides post-sale furniture and mattress services to manufacturers and retailers in the home furnishings and bedding industry. Those services include extended warranty and service-contract programs and on-site furniture inspection, cleaning and repair.

24. A recurring task in ServeCo's business is measuring depressions in the top surface of a mattress to determine whether the mattress meets certain warranty conditions.

25. ServeCo and others in the industry have performed such measurements using methods that have been well known for many years. Known methods for measuring the depth of a mattress surface depression include using a taut string

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25. ServeCo and others in the industry have performed such measurements using methods that have been well known for many years. Known methods for measuring the depth of a mattress surface depression include using a taut string stretched across the top surface of a mattress and using a rigid straight edge laid across the top surface of the mattress. Mr. Martinez acknowledged these methods as prior art by describing them in the '781 patent.

B. Martinez's Employment at ServeCo and Development of the Device

26. Martinez was employed by ServeCo from January 1, 2025 through August 26, 2026, in the position of President of Premier Furniture Consultant, LLC d/b/a ServeCo Repair. During this employment, Martinez reported to Anthony Milano, ServeCo's Chief Executive Officer.

27. Martinez was responsible for the management and development of the ServeCo Repair field service part of ServeCo's business. In this role, Martinez was responsible for supervising and managing field service technicians and for managing the quality, knowledge, tools, equipment, and vehicles used by ServeCo to provide its in-home services.

B. Martinez's Employment at ServeCo and Development of the Device

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28. During his employment, Martinez worked with several ServeCo employees on the development of the Device, including without limitation ServeCo's software-development resources; its laser

COUNT III

Declaratory Judgment of Implied License

87. Martinez's entire course of conduct — developing the Device on ServeCo's time and at ServeCo's expense, providing the Device for ServeCo's use, building additional units for ServeCo, training ServeCo personnel in its use, using it himself on ServeCo's behalf, and encouraging ServeCo's open use of the Device for almost 20 months — demonstrates his consent to ServeCo's practice of the subject matter that Martinez purports is covered by the '781 patent.

88. Martinez's conduct would lead a reasonable person in ServeCo's position to understand that Martinez fully consented to ServeCo's use of the Device.

89. Martinez knew of and encouraged ServeCo's purchase of 100 laser heads for additional devices. After the '781 patent issued on May 5, 2026, he continued to participate in ServeCo's commercialization of the Device, including by presenting it to ServeCo's customer Macy's, and by continuing to consent and acquiesce to ServeCo's manufacture and use of the Device in its business.

90. ServeCo relied on Martinez's conduct in adopting use of the Device in its business, covering development and manufacturing costs, building and acquiring additional units, training its personnel to use the Device, incorporating the Device into its service protocols and customer commitments, and forgoing the development or purchase of alternative measurement equipment.

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PRAYER FOR RELIEF

WHEREFORE, Plaintiff ServeCo respectfully requests that this Court enter judgment in its favor and against Defendant Martinez as follows:

A. Declaring that ServeCo has not infringed and does not infringe, directly or indirectly, literally or under the doctrine of equivalents, any claim of U.S. Patent No. 12,618,781;

B. Declaring that each claim of U.S. Patent No. 12,618,781 is invalid;

C. Declaring that ServeCo holds an implied license to practice the subject matter claimed in U.S. Patent No. 12,618,781;

D. Declaring that ServeCo is not liable to Martinez for infringement of U.S. Patent No. 12,618,781;

E. Permanently enjoining Martinez, and all persons acting in concert with him, from asserting or threatening to assert U.S. Patent No. 12,618,781 against ServeCo or against ServeCo's customers, distributors, suppliers, or users on account of the Device;

F. Declaring this case exceptional under 35 U.S.C. § 285 and awarding ServeCo its reasonable attorneys' fees;

G. Awarding ServeCo its costs of suit;

H. Awarding such other and further relief as this Court deems just and proper; and

I. Declaring that Martinez is equitably estopped from enforcing U.S. Patent No. 12,618,781 against ServeCo's manufacture and use of the Device in the mattress-inspection activities described in the equitable-

estoppel count, including their materially unchanged continuation within the scope established by Martinez's conduct and ServeCo's reliance, and that ServeCo is not liable to Martinez for patent infringement based on those activities.

DEMAND FOR JURY TRIAL

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Pursuant to Rule 38 of the Federal Rules of Civil Procedure, Plaintiff ServeCo North America LLC demands a trial by jury on all issues so triable.

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Dated: October 6, 2026

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/s/ *Shane Nichols*

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